

Sant Gulab Das Alias Gulab Chandra Pathak v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 25 May 2024 · 2024:AHC-LKO:39896-DB · WRIT - C No. 4692 of 2024 · **Writ disposed; billing dispute remitted to the Executive Engineer under paragraph 6.5.**

HEADNOTE

Writ seeking certiorari against invoice No. 060801721 dated 21.09.2022 for Rs. 1,306.26, and later bills, on the plea that no physical connection was given under account No. 7596214000. The licensee stated on written instructions that the connection was given in 2022 and that the grievance was a billing dispute examinable under paragraph 6.5 of the Electricity Supply Code. Petition disposed of with a direction to apply to the Executive Engineer, M.V.V.N.L., Vidyut Vitran Khand (Second), Sultanpur, within two weeks, and to that officer to decide the dispute strictly in accordance with law within six weeks.

FACTUAL SUMMARY

Sant Gulab Das alias Gulab Chandra Pathak applied for an electricity connection under account No. 7596214000. He told the Lucknow Bench that no physical connection was ever provided, yet Opposite Party No. 5 raised invoice No. 060801721 dated 21 September 2022 for Rs. 1,306.26, with further bills continuing. He sought certiorari to quash those bills. Counsel for Madhyanchal Vidyut Vitran Nigam Limited, on written instructions, stated that the connection had been given in 2022 and that the grievance was a billing dispute.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

billing dispute remitted to Executive Engineer

HOLDING

Where the consumer says a bill was raised without a physical connection, and the licensee states on written instructions that the connection was given in 2022 and that the grievance is a billing dispute, the dispute is to be looked into under paragraph 6.5 of the Electricity Supply Code by the Executive Engineer. The writ is disposed of by directing the consumer to make a complete application to the Executive Engineer, M.V.V.N.L., Vidyut Vitran Khand (Second), Sultanpur, within two weeks, and directing that officer to decide the dispute strictly in accordance with law within six weeks thereafter. ¶ 1-2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking quashing of the bill was disposed of by sending the consumer to the Executive Engineer under paragraph 6.5, without the Court examining the bill on merits. ¶ 1-2

billing-dispute-question-of-fact-executive-engineer-clause-6.5 Once the licensee stated that the connection had been given in 2022 and that the grievance was a billing dispute, the Court left that dispute to the Executive Engineer under paragraph 6.5. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A PHYSICAL CONNECTION WAS IN FACT GIVEN IN 2022, AND WHETHER INVOICE NO. 060801721 DATED 21.09.2022 FOR RS. 1,306.26 AND LATER BILLS ARE PAYABLE.

Left to the Executive Engineer to decide strictly in accordance with law on a completed application. ¶ 1-2

